SECURITIES AND EXCHANGE COMMISSION

17 CFR Parts 202, 232, 240, 249, and 249b

[Release Nos. 33-11342; 34-101925; IC-35420; File No. S7-08-23]

RIN 3235-AL85

Electronic Submission of Certain Materials Under the Securities Exchange Act of 1934; Amendments Regarding the FOCUS Report

AGENCY: Securities and Exchange Commission.

ACTION: Final rule.

SUMMARY: The Securities and Exchange Commission ("Commission" or "SEC") is amending its rules to require electronic filing or submission of certain forms and other filings or submissions that are required to be filed with or submitted to the Commission under the Securities Exchange Act of 1934 ("Exchange Act") and the rules and regulations under the Exchange Act. The amendments require the electronic filing or submission on the Commission's Electronic Data Gathering, Analysis, and Retrieval ("EDGAR") system, using structured data where appropriate, for certain forms filed or submitted by self-regulatory organizations ("SROs"). The amendments require the information currently contained in Form 19b-4(e) to be publicly posted on the SRO's website and remove the manual signature requirements for SRO proposed rule change filings. The Commission is also requiring that a clearing agency post supplemental material to its website. In addition, the Commission is amending rules under the Exchange Act and the Securities Act of 1933 ("Securities Act") to require the electronic filing or submission on EDGAR, using structured data where appropriate, of certain forms, reports, and notices provided by broker-dealers, security-based swap dealers, and major security-based swap

participants. The amendments also require withdrawal in certain circumstances of notices filed in connection with an exception to counting certain dealing transactions toward determining whether a person is a security-based swap dealer. Finally, the Commission is allowing electronic signatures in certain broker-dealer filings, and amending the Financial and Operational Combined Uniform Single Report ("FOCUS Report") to harmonize with other rules, make technical corrections, and provide clarifications.

DATES: *Effective date:* [INSERT DATE 60 DAYS AFTER DATE OF PUBLICATION IN THE *FEDERAL REGISTER*].

Compliance dates: The compliance dates for the rule amendments are discussed in section VIII of this release.

FOR FURTHER INFORMATION CONTACT: For Form 1 – Justin Pica, Assistant Director, and David Remus, Special Counsel; for Form 1-N – David Dimitrious, Senior Special Counsel, and Michou Nguyen, Special Counsel; for Form 15A – Molly Kim, Assistant Director, and David Michehl, Special Counsel; for Form CA-1 – Matthew Lee, Assistant Director, and Claire Noakes, Senior Special Counsel; for Form 19b-4(e) and technical amendment to Form 19b-4 – Cristie March, Senior Special Counsel, and Edward Cho, Special Counsel; for Rule 17a-22 – Matthew Lee, Assistant Director, and Susan Petersen, Special Counsel; for Rule 17a-5, Rule 17a-12, Rule 18a-7, Form X-17A-5 Part III and related annual filings, Form X-17A-5 Parts II, IIA, and IIC, Form 17-H, and Form X-17A-19 – Raymond A. Lombardo, Assistant Director, and Valentina Minak Deng, Special Counsel; for notices provided pursuant to Rule 3a71-3(d)(1)(vi) and Rule 15fi-3(c) – Carol McGee, Associate Director; John Guidroz, Assistant Director, and Israel Goodman, Senior Counsel; and for reports submitted pursuant to Rule 15fk-1(c)(2)(ii)(A), Kelly Shoop, Branch Chief, and Patrick Bloomstine, Attorney-Adviser, Division of Trading and

Markets, at (202) 551-5500, Securities and Exchange Commission, 100 F Street NE, Washington, DC 20549.

SUPPLEMENTARY INFORMATION: The Commission is amending its rules to require the electronic filing or submission, using structured data where appropriate, of certain forms and other filings,[1] which are currently filed with or submitted to the Commission in paper or via email or are new filing requirements. This release is divided into five parts: (1) forms that are filed or submitted by or otherwise made available electronically by SROs ("Covered SRO Forms"); (2) supplementary materials ("Covered Supplementary Materials") required to be posted on the internet websites of clearing agencies; (3) forms and related filings filed or submitted by broker-dealers and over-the-counter derivatives dealers ("OTC derivatives dealers"), as well as security-based swap dealers ("SBSDs") and major security-based swap participants ("MSBSPs") (each SBSD and each MSBSP also referred to as an "SBS Entity" and together referred to as "SBS Entities"); (4) other notices, filings, and reports consisting of (a) Form X-17A-19; (b) 17 CFR 240.3a71-3(d)(1)(vi) ("Rule 3a71-3(d)(1)(vi)") Notices; (c) 17 CFR 240.15Fi-3(c) ("Rule 15fi-3(c)") Notices; and (d) 17 CFR 240.15Fk-1(c)(2)(ii)(A) ("Rule 15fk-1(c)(2)(ii)(A)") Compliance Reports; and (5) amendments regarding the FOCUS Report, that, among other things, would modernize signature requirements in Exchange Act Rules 17a-5, 17a-12, and 18a-7.[2] The Commission is adopting amendments to or relating to the following rules:

Commission Reference	**CFR Citation**

[1] For purposes of this release, the term "form" means any Commission-created document labeled as a "Form" that is required to be submitted or filed electronically, and the term "filing" means any form, notice, report, or material required to be submitted or filed electronically or required to be posted on an internet website in lieu of being submitted or filed.

[2] The Commission's release also includes amendments to CFR designations in order to ensure regulatory text conforms more consistently with section 2.13 of the Document Drafting Handbook. See Office of the Federal Register, Document Drafting Handbook (Aug. 2018 Edition, Revision 2.1, dated Oct. 2023),

		(17 CFR)
Administrative Practice and Procedure, Securities	Rule 202.3	§ 202.3
Securities Act of 1933 ("Securities Act")[3]		
Regulation S-T	Rule 100	§ 232.100
	Rule 101	§ 232.101
	Rule 201	§ 232.201
	Rule 202	§ 232.202
	Rule 405	§ 232.405
Securities Exchange Act of 1934 ("Exchange Act")[4]		
	Rule 3a71-3	§ 240.3a71-3
	Rule 6a-1	§ 240.6a-1
	Rule 6a-2	§ 240.6a-2
	Rule 6a-3	§ 240.6a-3
	Rule 6a-4	§ 240.6a-4
	Rule 15aa-1	§ 240.15aa-1
	Rule 15aa-2	§ 240.15aa-2
	Rule 15fi-3	§ 240.15fi-3
	Rule 15fk-1	§ 240.15fk-1
	Rule 17a-5	§ 240.17a-5
	Rule 17a-12	§ 240.17a-12
	Rule 17a-19	§ 240.17a-19
	Rule 17a-22--	§ 240.17a-22
	Rule 17ab2-1	§ 240.17ab2-1
	Rule 17h-2T	§ 240.17h-2T
	Rule 18a-7	§ 240.18a-7
	Rule 19b-4	§ 240.19b-4
	Rule 24b-2	§ 240.24b-2
	Form 1	§ 249.1
	Form 1-N	§ 249.10
	Form CA-1	§ 249.200
	Form 17-H	§ 249.328T
	Form X-17A-5 Part II	§ 249.617
	Form X-17A-5 Part IIA	§ 249.617

available at https://www.archives.gov/files/federal-register/write/handbook/ddh.pdf. For rules being amended in this release that contain an uppercase letter in their CFR citations (other than temporary rules like 17 CFR 240.17h-2T), the Commission is amending their CFR section designations to replace each such uppercase letter with the corresponding lowercase letter, and, in one case, to also redesignate the rule numbering. For example, 17 CFR 240.15Fi-3 is being redesignated as 17 CFR 240.15fi-3, 17 CFR 240.15Fk-1 is being redesignated as 17 CFR 240.15fk-1, 17 CFR 240.15Aa-1 is being redesignated as 17 CFR 240.15aa-1, and 17 CFR 240.15Aj-1 is being redesignated as 17 CFR 240.15aa-2.

[3] See 15 U.S.C. 77a through 77mm.

[4] See 15 U.S.C. 78a through 78qq.

	Form X-17A-5 Part IIC	§ 249.617
	Form X-17A-5 Part III	§ 249.617
	Form X-17A-19	§ 249.635
	Form X-15AA-1	§ 249.801
	Form 15A	§ 249.801 (as amended)
	Form 19b-4	§ 249.819

Finally, the Commission is rescinding:

Commission Reference		**CFR Citation (17 CFR)**
Exchange Act	Form X-15AJ-1	§ 249.802
	Form X-15AJ-2	§ 249.803
	Form 19b-4(e)	§ 249.820

In developing this release with regard to SBS Entities, the Commission has consulted and coordinated with the CFTC and the prudential regulators in accordance with the Dodd-Frank Wall Street Reform and Consumer Protection Act ("Dodd-Frank Act").[5]

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[5] See Pub. L. 111-203, 124 Stat. 1376 (2010). Section 712(a)(2) of the Dodd-Frank Act provides in part that the Commission shall "consult and coordinate to the extent possible with the Commodity Futures Trading Commission and the prudential regulators for the purposes of assuring regulatory consistency and comparability, to the extent possible."

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I. Introduction

A. Experience with Targeted Regulatory Assistance During the COVID-19 Pandemic

As part of its response to the COVID-19 pandemic, the Commission and its staff provided assistance and regulatory relief to market participants, as appropriate, to facilitate the continued orderly and fair functioning of the securities markets.[6] As part of these efforts, Division of Trading and Markets ("Division") staff issued a statement providing that the staff would not recommend enforcement action if filers and registrants made alternative arrangements, as detailed in the statement, for delivery, execution, and notarization of certain paper filings.[7]

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[6] See generally, e.g., An Update on the Commission's Targeted Regulatory Relief to Assist Market Participants Affected by COVID-19 and Ensure the Orderly Function of our Markets (public statement by Chairman Jay Clayton, William Hinman, Director, Division of Corporation Finance, Dalia Blass, Director, Division of Investment Management, Brett Redfearn, Director, Division of Trading and Markets (Jan. 26, 2020, updated Jan. 5, 2021)), available at https://www.sec.gov/news/public-statement/update-commissions-targeted-regulatory-relief-assist-market-participants.

[7] See generally Division Updated Staff Statement Regarding Certain Paper Submissions in Light of COVID-19 Concerns ("Updated Staff Statement"), available at https://www.sec.gov/tm/paper-submission-requirements-covid-19-updates-061820. Staff reports, Investor Bulletins, and other staff documents cited

More specifically, the staff stated that it would not recommend that the Commission take enforcement action with respect to any failure to comply with the paper format submission requirement or manual signature requirement of certain "Impacted Paper Submissions" (as defined in the Updated Staff Statement), which included, but were not limited to, broker-dealer audited annual reports, Form 1 filings for national securities exchanges, and Form CA-1 filings for clearing agencies.

In general, electronic filing of Impacted Paper Submissions has been practical and efficient. It also has been the Commission's experience that electronic filing has been positively received by the various registrants that have used it. Based in part on these positive experiences with electronic filing during the COVID-19 pandemic, and as part of its efforts to modernize the methods by which it collects and analyzes information from registrants, the Commission proposed to amend certain rules and forms to require that a number of the filings be submitted to the Commission electronically on EDGAR using structured data where appropriate.[8] The Commission received comment letters in response to the Proposing Release[9] and, as set forth in more detail below, is adopting the proposed amendments with certain modifications in response to comments.

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in this release represent the views of Commission staff and are not a rule, regulation, or statement of the Commission. The Commission has neither approved nor disapproved the content of these documents and, like all staff statements, they have no legal force or effect, do not alter applicable law, and create no new or additional obligations for any person.

8 See Electronic Submission of Certain Materials Under the Securities Exchange Act of 1934; Amendments Regarding the FOCUS Report; Exchange Act Release No. 97182 (Mar. 22, 2023), 88 FR 23920 (Apr. 18, 2023) ("Proposing Release").

9 The comments on the Proposing Release (File No. S7-08-23) are available at https://www.sec.gov/comments/s7-08-23/s70823.htm.